

TENTATIVE RULINGS

FOR: August 11, 2026

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“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

In The Matter of The Marie Davis Supplemental Needs Trust

25PR000064

PETITION FOR APPROVAL OF GUARDIAN AD LITEM FEES AND COSTS

TENTATIVE RULING: The Matter is CONTINUED to September 15, 2026, at 8:30 a.m. in Dept. A. There is, in the Court’s file, no proof of service of the Petition or Notice of Hearing on those listed in the Petition as entitled to such notice. “The court lacks jurisdiction to

rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

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Estate of Connie Ann Alric

25PR000148

FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF COMPENSATION TO ATTORNEYS FOR ORDINARY SERVICES, FOR A RESERVE, AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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Estate of Adele Ann Casten

25PR000290

[1] PETITION HEARING FOR INSTRUCTIONS REGARDING THE VALIDITY OF ADELE CASTEN’S APRIL 19, 2019 AND MAY 3, 2019 WILLS

TENTATIVE RULING: The Court finds from the facts presented in the Petition that the presumption of fraud or undue influence arising under Probate Code section 21380 applies to the Last Will and Testament of Adele Casten dated May 3, 2019, and lodged with the Court on May 19, 2026 (May 3, 2019, Will). However, the Court finds, in the matters set forth in the Statement of Facts filed August 3, 2026, by Claire Fahlstrom, “clear and convincing evidence, that the donative transfer was not the product of fraud or undue influence.” (Prob. Code, § 21380, subd. (b).)

Based on the foregoing, the Court finds good cause for ruling that the May 3, 2019, Will is a valid testamentary instrument. Moreover, the Court is prepared, on the same grounds, to find MOOT the request to determine the validity of the Last Will and Testament of Adele Casten dated April 19, 2019. However, all interested parties have the right to appear and object to the Petition orally or in writing at the hearing. (See Prob. Code § 1043.) Also, if any interested party appears to “request time for filing a response to the petition, for discovery proceedings, or for other preparation for the hearing,” the Court is required to grant a continuance (Prob. Code, § 852.)

[2] AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

APPEARANCE REQUIRED.

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PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Melissa Castellucci v. Peju Family Operating Partnership, LP

25CV000098

PLAINTIFF’S MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGE SETTLEMENT

TENTATIVE RULING: In reviewing the motion for preliminary approval of class action settlement, the Court orders further briefing on the following items:

- 1) A reasonable estimate of the nature and amount of recovery that each class member could have obtained if plaintiff prevailed;
- 2) Amount, or an estimate, of what each class member will receive from the settlement amount;
- 3) Explanation as to why the class representative enhancement is reasonable in light thereof;
- 4) Plaintiff shall submit a supplemental declaration estimating the number of hours she spent on the matter as class representative;
- 5) Plaintiff shall provide California caselaw authorizing class counsel fees in the amount of 35% of the settlement.

The additional briefing shall be filed and served by August 25, 2026. The matter is CONTINUED to September 2, 2026, at 8:30 a.m. in Dept. A.

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Laurie Capitelli et al v. Melinda Stewart et al

26CV000878

DEMURRER TO PLAINTIFFS’ VERIFIED COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to September 3, 2026 at 8:30 a.m. in Dept. A.
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PETITION FOR CHANGE OF NAME

TENTATIVE RULING: The matter is CONTINUED to August 21, 2026, at 8:30 a.m. in Dept. A.

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Okell Holdings, LLC et al v. Quantum Limited Partners, LLC et al

26CV001310

MOTION FOR PRELIMINARY INJUNCTION

TENTATIVE RULING: The Motion is DENIED.

A. PROCEDURAL MATTERS

Plaintiffs Okell Holdings, LLC and Jason Anderson (“Anderson”) (collectively, “Plaintiffs”) move, pursuant to Code of Civil Procedure sections 525, 526, and 527,¹ for a preliminary injunction enjoining Defendants Quantum Limit Partners, LLC, Glenn C. Rice and Cynthia Hoy (collectively, “Defendants”) from specific conduct that would further interfere with Plaintiffs’ claimed rights in the Water System. (See Notice of Motion, p. 2.)

1. Notice

“A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC).” (Rules of Court, rule 3.1150(a).) However, “[a]n OSC *must* be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint.” (*Ibid.* Emphasis added.)

Here, Plaintiff did not utilize an OSC, but rather noticed their request for a preliminary injunction as a motion under section 1005. However, Plaintiffs sought a TRO and, at the time of filing the Motion, Defendants had not yet appeared in the action; both circumstances require an OSC rather than a noticed motion. This procedural issue is a matter of jurisdiction. (See *JHVS Group, LLC v. Slate* (2024) 107 Cal.App.5th 30, 37-38 [reversing grant of preliminary injunction where defendants not served with summons and complaint and therefore not subject to court’s jurisdiction].)

However, here, Defendants were ultimately served with the Summons and Complaint on July 13, 2026 (prior to their opposition deadline) and filed an Opposition responding to the substance of the Motion without raising any jurisdictional objection. Therefore, the Court overlooks Plaintiffs’ non-compliance with Rules of Court rule 3.1150 as well as the procedural

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

irregularity that Plaintiffs' TRO Application was not accompanied by an OSC and, instead, Plaintiffs separately seek a preliminary injunction with terms and obligations different than their TRO Application.

2. Amended Proposed Order in Reply

Plaintiffs filed an Amended Proposed Order with their Reply, removing Paragraph 7 from the original Proposed Order. Defendants opposed the Motion as to the original Proposed Order. Based on the foregoing, the Court need not address Defendants' arguments in Opposition as to Paragraph 7. (See Opp. 14:5-15.)

3. Request for Judicial Notice

Defendants' Request for Judicial Notice ("RJN") of the court record (Exhibit A) is GRANTED but not for the truth of the matters asserted therein.

4. Vague and Inconsistent Terms of the Requested Preliminary Injunction

"A court, mindful of its own dignity and credibility, is unlikely to issue injunctions that, as a practical matter, cannot be enforced." (Weil & Brown, *et al.*, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2020) §9:525, p. 9(II)-13.) Thus, in *Evans v. Evans* (2008) 162 Cal.App.4th 1157, 1169, the Court invalidated a preliminary injunction which "broadly prohibited [Defendant] from publishing any defamatory comments about [Plaintiff]." "This sweeping prohibition fails to adequately delineate which of [Defendant's] future comments might violate the injunction and lead to contempt of court." (*Ibid.*) Similarly, courts should avoid issuing injunctions which are vague, ambiguous, or overbroad. (See *ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1026.)

Here, Plaintiffs' Amended Proposed Order contains five substantive paragraphs as follows: Defendants are (1) enjoined from removing, disconnecting, abandoning, damaging, obstructing, relocating, altering, or otherwise interfering with the relocated pipeline or any other portion of the Water System serving Plaintiffs' property, except by written agreement of the parties or further order of the Court; (2) required to complete the relocated pipeline in a workmanlike manner, including burying all exposed portions of the relocated pipeline and restoring the relocated Water System to a condition that is functionally equivalent to the prior system, including equivalent water pressure, flow capacity, reliability, maintenance access, and fire protection capability; (3) enjoined from denying Plaintiffs reasonable access to inspect, operate, maintain, repair, and replace the relocated pipeline to the same extent Plaintiffs claim such rights existed before the unilateral relocation; (4) enjoined from contending or acting upon a contention that Defendants' unilateral relocation of the pipeline extinguished, diminished, impaired, or converted Plaintiffs' claimed contractual rights, easement rights, Water System rights, or other property rights; and (5) enjoined from taking any further action that would materially alter, impair, conceal, destroy, or modify the relocated Water System or related evidence. (See 8/4/26 Proposed Order.)

Item 2 is impermissibly vague and fails to provide Defendants fair notice of the conduct required, particularly where the request for the injunction arises out of Defendants’ allegedly substandard relocation work in the first place. Items 2 and 3 are internally inconsistent and unclear as to what is supposed to happen with the Water Pipe (defined below) and who is to do it. Items 1 and 5 (enjoining Defendants from interfering with the Water Pipe) are also inconsistent with Item 2 (requiring Defendants to conduct work on the Water Pipe).

Furthermore, Plaintiffs do not define “Water System” used repeatedly in the Proposed Order. It appears Plaintiffs are relying upon the definition of Water System used in the parties’ 2023 Agreement, attached as Exhibit B to the John N. Heffner Declaration. However, that is not made clear by the Complaint or moving papers. This further renders the preliminary injunction fatally vague, as the precise subject to which Plaintiffs are referring is unclear.

B. RELEVANT FACTUAL BACKGROUND

Defendants own property at 25 Quail Ridge Drive, and Plaintiffs own an adjoining parcel at 35 Quail Ridge Drive. (Compl., ¶¶ 1-3.) In 2023, the parties resolved a previous water rights dispute through a settlement that became judgment in case no. 20CV001370 (“Agreement”). (Compl., ¶ 17; Declaration of John N. Heffner (“Heffner Decl.”), ¶ 4, Exh. B.) The Agreement defined the “Water System” as three wells existing upon Plaintiffs’ property “and related systems and pipelines capable of supplying potable water to [Defendants’ property].” (Heffner Decl., Exh. B, p. 1.)

In 2026, the parties discovered a pipe carrying well water across Defendants’ property to Plaintiffs’ property (“Water Pipe”). (See Compl., ¶ 23, Exh. C; Heffner Decl., ¶ 7, Exh. E.) The Water Pipe supplies water used by Plaintiffs’ property for irrigation of grape vines, water for livestock, and water for a wet draft hydrant used for fire suppression for an agricultural barn located on Plaintiffs’ property. (Compl., ¶ 11; Declaration of Jason Anderson (“Anderson Decl.”), ¶¶ 6-8.) Plaintiffs contend that the Water Pipe constitutes a component of the Water System described in the Agreement and that Plaintiffs have property rights thereto. (Compl., ¶ 19; Anderson Decl., ¶ 4.)

Defendants disagree, contending that the Water Pipe is outside of the Water System governed by the Agreement. On June 19, 2026, Defendants advised Plaintiffs that the Water Pipe running across their property constitutes a trespass and nuisance, as it interferes with the construction of Defendants’ agricultural storage facility. (Compl., ¶¶ 22-23; Heffner Decl., ¶ 8.) Defendants further advised they intend to proceed with the construction and to remove or relocate the Water Pipe. (Compl., ¶¶ 22-23; Heffner Decl., ¶ 9.)

On June 21, 2026, Plaintiffs proposed to have the Water Pipe relocated to accommodate Defendants’ construction, on the condition that: Defendants bore the cost, water service was maintained, the relocated facilities provided equal or greater capacity and functionality, appropriate easement rights were preserved, and any damage was repaired at Defendants’ expense. (Compl., ¶ 25; see also Heffner Decl., ¶ 10, Exh. F; Anderson Decl., ¶ 10 [“I never believed the Water Pipeline should remain in its existing location if relocation became

reasonably necessary to accommodate construction of Defendants' proposed agricultural storage building."], ¶ 11.)

On June 22, 2026, Plaintiffs filed their Verified Complaint and *Ex Parte* Application for a Temporary Restraining Order ("TRO"). The Complaint asserts six causes of action, including: (1) Quiet Title to Easement Rights, (2) Interference with Easement Rights, (3) Private Nuisance, (4) Declaratory Relief, (5) Breach of Contract, and (6) Injunctive Relief. The gravamen of the Complaint is that Plaintiffs possess rights to the Water Pipe and Defendants have been acting inconsistently therewith. (See Compl., ¶¶ 30, 39-40, 53, 60, 65, 72, 78.)

At the June 30, 2026 TRO hearing, Plaintiffs sought to enjoin Defendants from altering or interfering with the Water Pipe. During the hearing, Defendants represented that they have "now proposed a bypass system that will [e]nsure the continued flow of water to Plaintiff's property." (Heffner Decl., ¶ 11, Exh. G [Transcript of June 30, 2026 Hearing, 10:8-10]; see also RJN, Exh. A, ¶ 2.) The Court found that the only emergency that existed at the time of the hearing was the "cutting off water service" and that "none of the emergencies relate to the location of the pipe." (*Id.*, 11:5-9.) The Court therefore granted the TRO in limited part, to prohibit the interruption of flow of water for more than 90 minutes. (*Id.*, 11:4-5) The Court declined to determine (i.e., to *either* grant or deny) the TRO Application regarding any right to relocate the Water Pipe or the parties' respective property rights as to the location of Water Pipe. (*Id.*, 11:16-23, 12:9-10; see also 6/30/26 Minute Order; 7/9/26 Order on *Ex Parte*.)

On July 7, 2026, Defendants elected to relocate the Water Pipe. (Mem., 9:6-7; Opp., 3:19-21; Heffner Decl., ¶ 13.) "Consistent with Plaintiffs' prior representations, Jason Anderson cooperated in the relocation by shutting down the Water System and restoring water service after the work was completed." (Mem., 9:8-10; see also Anderson Decl., ¶ 12.) Afterward, Plaintiffs observed that the relocated Water Pipe did not appear to perform as represented; water pressure and flow were reduced, and substantial portions of the Water Pipe remained above ground and exposed. (Mem., 9:11-17; Heffner Decl., ¶ 15; Anderson Decl., ¶¶ 14-16, 18.)

By way of the Motion, Plaintiffs essentially seek a functionally equivalent Water Pipe and preservation of Plaintiffs' claimed contractual and property rights in the Water Pipe. (See Mem., 5:1-4, 9:26-28, 10:1-4; Reply, 1:15-19.)

C. LEGAL STANDARD

An injunction may be granted "[w]hen it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action." (§ 526, subdivision (a)(2).) "A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." (§ 527, subd. (a).)

"[T]he question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits; and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive

relief.’” (*Jay Bharat Developers, Inc. v. Minidis* (2008) 167 Cal.App.4th 437, 443 (quoting *White v. Davis* (2003) 30 Cal.4th 528, 554).) The burden is on the plaintiff to show all elements necessary to support issuance. (*O’Connell v. Sup. Ct.* (2006) 141 Cal.App.4th 1452, 1481; *Citizens for Better Streets v. Bd. of Supervisors* (2004) 117 Cal.App.4th 1, 6.)

The court’s determination must be guided by a mix of the potential-merit and interim-harm factors; the greater plaintiffs’ showing on one, the less must be shown on the other. (*Butt v. State of California* (1992) 4 Cal.4th 668, 678; *King v. Meese* (1987) 43 Cal.3d 1217, 1226-28 [held: court has discretion to issue preliminary injunction where plaintiff demonstrates high likelihood of success on merits even if plaintiff unable to show balance of harm tips in his or her favor].) “However, ‘[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.’” (*Jamison v. Department of Transp.* (2016) 4 Cal.App.5th 356, 362; see also *Yu v. University of La Verne* (2011) 196 Cal.App.4th 779, 787, 793 [appellate court need not reach issue of whether balance of harms favors granting preliminary injunction where trial court correctly determined moving party failed to show any likelihood of succeeding on merits]; *Doe v. Regents of Univ. of Calif.* (2024) 102 Cal.App.5th 766, 773.)

Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146,150.) “The trial court is the judge of the credibility of the affidavits filed in support of the application for preliminary injunction and it is the court’s province to resolve conflicts.” (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450 (internal quotations omitted).) A trial court is to exercise its discretion “in favor of the party most likely to be injured.” (*Robbins v. Sup. Ct.* (1985) 38 Cal.3d 199, 205.)

D. DISCUSSION

1. Plaintiffs Have Failed to Show the Likelihood They Will Prevail on the Merits

As an initial matter, Plaintiffs’ assertion that the only issue on the Motion is whether provisional relief is necessary to preserve the relocated Water Pipe and the parties’ respective positions pending final adjudication (what Plaintiffs refer to as the status quo) is not well taken. (See Reply, 1:21-25.) That issue is only one piece of the *second factor* to be considered in connection with the parties’ relative interim harm. As noted, a court may not grant a preliminary injunction, *regardless of the second factor*, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.

As noted, by way of this Motion, Plaintiffs seek a functionally equivalent Water Pipe and preservation of Plaintiffs’ claimed contractual and property rights in the Water Pipe. While the preservation of Plaintiffs’ claimed contractual and property rights in the Water Pipe was at issue on the TRO Application and is at issue in the Complaint, Plaintiffs’ request for a functionally equivalent Water Pipe is slightly different than the issues raised in the Complaint and TRO Application—which is not surprising seeing as how the relocation of the Water Pipe occurred after both the Complaint and TRO filings. Nevertheless, as with the causes of action asserted in

the Complaint, Plaintiffs' request for a functionally equivalent Water Pipe ultimately relies upon Plaintiffs' asserted property and contractual rights in the Water Pipe.

Plaintiffs present a cursory discussion of their probability of success on the merits regarding their contractual and property rights in the Water Pipe. (See Mem., 10:20-11:4; Reply, 2:20-3:8.) Plaintiffs appear to acknowledge this by concluding that "[a]t a minimum, Plaintiffs have demonstrated serious questions going to the merits warranting preservation of the status quo." (Reply, 3:7-8.) "Serious questions going to the merits" does not satisfy the standard for the first prong of preliminary injunction analysis. Plaintiffs fail to discuss their Complaint or the legal elements of any of the causes of action asserted therein, and fail to meaningfully discuss (much less cite to) the evidence presented or how the evidence shows the likelihood that Plaintiffs will prevail on the merits in support of their claimed property and contractual rights in the Water Pipe. (See Mem., 10:20-11:4; Reply, 2:20-3:8.)

On the other hand, Defendants in Opposition provide a thorough discussion of the causes of action asserted against them, the legal elements thereof, and the evidence they contend defeats Plaintiffs' showing of a likelihood of prevailing.

Namely, Defendants undermine Plaintiffs' theories regarding their rights to the Water Pipe, by arguing: (1) the 2005 Agreement was expressly terminated by the 2023 Agreement (Opp., 5:27-6:5); (2) the 2023 Agreement does not grant Plaintiffs any easements, as it governs the delivery of water from Plaintiffs' property to Defendants' property (Opp., 6:6-12); (3) the easements governed by the 2023 Agreement are mapped therein and the Water Pipe is not shown (Opp., 6:13-22); (4) Plaintiffs cannot establish open and notorious use of the Water Pipe as it remained concealed underground and Defendants did not know about it until it was uncovered during construction in June 2026 (Opp., 6:23-7:6); (5) Plaintiffs have failed to present evidence establishing the elements for an implied easement, estoppel, or acquiescence (Opp., 7:7-8:5, 9:16-27); and (6) Plaintiffs cannot establish easement by necessity or equitable easement given, among other things, that both the Water Pipe's source and destination are on Plaintiffs' property (Opp., 8:6-9:15). Moreover, Defendants show that the remaining five causes of action are dependent upon Plaintiffs' establishment of rights in the Water Pipe. (Opp., 10:1-12:8.)

Based on the foregoing, the Court finds that Plaintiffs have failed to meet their burden to show the likelihood of prevailing on the merits. This conclusion renders it unnecessary for the Court to turn to the second prong of the preliminary injunction analysis. Nevertheless, the Court considers the second prong for completeness.

2. Plaintiffs Have Failed to Show that Harm is Likely to Result from the Denial of Injunctive Relief, and, Therefore, the Court Need not Consider the Balance of Harms Between Plaintiffs and Defendants, Respectively

A consideration of interim harm to the plaintiff includes (1) the inadequacy of other remedies, (2) the degree of irreparable injury the denial of the injunction would cause, and (3) the necessity of preserving the status quo. (*Take Me Home Rescue v. Luri* (2012) 208 Cal.App.4th 1342, 1350.)

With respect to the potential alleged harm to Plaintiffs' claimed legal rights in the Water Pipe, Plaintiffs fail to address the first and second issues to be considered—the inadequacy of other remedies and the degree of irreparable injury the denial of the injunction would cause. These are the same issues the Court struggled to understand during the TRO hearing and which it asked Plaintiffs to articulate. (See Heffner Decl., Exh. G., 3:5-9, 4:17-27, 5:9-11, 6:15-7:4, 7:12-17, 10:17-27.) “Generally, where damages afford an adequate remedy by way of compensation for breach of contract, equitable relief will be denied.” (*Thayer Plymouth Center, Inc. v. Chrysler Motors Corp.* (1967) 255 Cal.App.2d 300, 306; see also *Tahoe Keys Prop. Owners' Ass'n v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1471.) Moreover, as the Court stated at the TRO hearing, the Court continues to have difficulty seeing irreparable injury or inadequacy of other remedies relating to Plaintiffs' claimed legal rights.

Even as to the third issue of the status quo, Plaintiffs have shown no demonstrated likelihood of Defendants taking any action contrary to Plaintiffs' asserted property rights in the Water Pipe pending this action, if an injunction does not issue.

Thus, Plaintiffs have failed to meet their burden on the second prong as to the potential for alleged harm to Plaintiffs' claimed rights in the Water Pipe should the injunction not issue. The Court therefore need not consider the alleged harm to Defendants should the injunction issue.

With respect to the alleged harm from a functionally inequivalent Water Pipe, the Court assumes, for argument purposes, that the status quo is the point in time before Defendants relocated the Water Pipe. Under that assumption, and assuming *arguendo* Plaintiffs had sufficiently shown that the Water Pipe's functionality/water service has been reduced from Defendants' relocation of the Water Pipe, the Court would agree with Plaintiffs that an injunction requiring further work to the Water Pipe to preserve its former level of water service would be necessary to protect that assumed status quo. However, the Court need not reach a conclusion on the point in time that determines the status quo analysis or whether the Water Pipe's functionality has, in fact, been reduced because Plaintiffs fail to meaningfully address the first and second issues to be considered—the inadequacy of other remedies and the degree of irreparable injury the denial of the injunction would cause. Plaintiffs state, in conclusory fashion and without evidentiary support, that “[a]ny material reduction in the Water System's performance threatens essential, ongoing uses of Plaintiffs' property and cannot be adequately remedied through an award of money damages.” (Mem., 13:27-14:2; see generally Anderson Decl. [no facts addressing extent of harm from the reduced water pressure or flow].)

Thus, Plaintiffs have failed to meet their burden on the second prong as to the potential for alleged harm stemming from a functionally inequivalent Water Pipe should the injunction not issue. The Court therefore need not consider the alleged harm to Defendants should the injunction issue.

For all the foregoing reasons, the motion is DENIED.

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PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of John D Reb, III

23PR000055

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review - Biennial hearing in two years, on August 11, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Peggy Ann Brinn

24PR000229

[1] REVIEW HEARING

[2] SECOND AND FINAL ACCOUNTING AND REPORT OF CONSERVATOR;
PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND
ESTATE, FOR ATTORNEY FEES, AND FOR TERMINATION OF
CONSERVATORSHIP

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. The Court has been informed that the Conservatee is deceased. The Conservatorship is, therefore, terminated. All future hearing dates are ordered VACATED.

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Estate of Helaine Deborah Katz

25PR000109

PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNT, AND FOR
ALLOWANCE OF STATUTORY COMPENSATION TO ATTORNEY FOR EXECUTOR

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.
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Conservatorship of: Janice Hoffman

26-68013

REVIEW HEARING

APPEARANCE REQUIRED. Conservator shall appear prepared to update the Court regarding the need for a Conservatorship of the Conservatee's Person, as discussed during the previous review hearing.

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In The Matter of The William R. and Gloria I. Garibaldi
Living Trust

26PR000103

AMENDED PETITION FOR ORDER DETERMINING TRUST'S TITLE TO PROPERTY
[Filed 5/29/26]

TENTATIVE RULING: The petition is GRANTED.

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Conservatorship of Sienna Notaro

26PR000113

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON –
LIMITED CONSERVATORSHIP

APPEARANCE REQUIRED

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Conservatorship of Rajeshwari Pandey

26PR000141

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

APPEARANCE REQUIRED. By Minute Order of July 14, 2026, the matter was continued to allow Petitioners to serve Notice of Hearing and the Petition on relatives within the second degree as mandated by Prob. Code Sections 1821, subdivision (b), and 1822. There remains, however, no proof of service on file. Petitioners are, therefore, directed to appear to inform the Court regarding the continuing failure to effectuate service and of the status of the case.

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 11, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

PLAINTIFF’S MOTION TO COMPEL RESPONSES TO WRITTEN DISCOVERY AND TO
COMPEL DEPOSITION

TENTATIVE RULING: The Motion is GRANTED. Kimberton Wines, LLC (Kimberton) is ordered to produce code-compliant responses, without objection save those based on attorney-client privilege or attorney work product, within 20 calendar days of Notice of Entry of the instant order. Kimberton is further ordered to, within 20 calendar days of Notice of Entry of order, designate and set a date, within 45 days of the Notice of Entry of Order, and time for deposition pursuant to the subject deposition notice. Plaintiff Meteor Growers, LLC (Meteor) is directed to serve and file a Notice of Entry of the instant order.

Plaintiff Meteor Growers, LLC (Meteor) moves, pursuant to California Rule of Court, rule 3.1348, and Code of Civil Procedure sections 2025.450, 2030.290, and 2033.280, for an order: (1) Compelling Defendant Kimberton Wines, LLC (Kimberton) to serve verified responses to written discovery; (2) Compelling Defendant Kimberton Wines, LLC to designate and produce its person most qualified for deposition; and (3) Deeming admitted the truth of each matter specified in Plaintiff’s RFAs.

A. FACTUAL FINDINGS

Based on the evidence submitted in support of the motion, the Court finds as follows.

1. On March 23, 2026, Meteor served Kimberton with a Notice of Taking Deposition of Person Most Qualified, setting deposition for April 30, 2026. (See Declaration of John A. Heffner at ¶ 3 and Exh. C.)
2. On May 11, 2026, Meteor served Kimberton with Form Interrogatories. And Requests for Admissions. (See *id.* at ¶¶ 6 and 7 and Exhs. A and B.)

3. Each of the subject discovery requests was served on Kimberton care of William Deem, Managing Member. (See *id.* at Exhs. A-C.) The Court takes judicial notice of the fact that on March 3, 2026, former counsel for Kimberton Ethan A. Glaubiger filed a Substitution of Counsel identifying Mr. Deem as Kimberton’s contact person for the litigation.²

4. The noticed deposition, and the time for Kimberton to respond to the subject discovery has passed. (Cal. Code Civ. Proc., §§ 2030.260, and 2033.250.)

5. No person appeared for the noticed deposition, and as of the filing of the present motion, Kimberton has not responded in any manner to the subject discovery and has not requested any extension of the deadline for responding. (See Heffner Decl. at ¶ 12.)

Kimberton appears to concede the foregoing by failing to file anything in opposition to the motion.

B. LEGAL ANALYSIS

1. Interrogatories

By operation of law, Kimberton has, by failing to timely serve interrogatory responses, waived the right to exercise the option to produce writings pursuant to Code of Civil Procedure section 2030.230, and has waived any objection to the interrogatories. (See Code Civ. Proc., § 2030.290, subd. (a).) Meteor is entitled to an order compelling Kimberton to serve code compliant responses, without objection, to the subject interrogatories. (See *id.* at subd. (b).)

“The court shall impose a monetary sanction against any party...who unsuccessfully...opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed....” (Rules of Court, rule 3.1348, subd. (a).)

No grounds appear to justify Plaintiff’s failure to respond to the subject discovery, and no other circumstances make the imposition of the sanction unjust.

² An LLC is not permitted to *appear* by a company officer rather than an attorney. (See *Merco Constr. Engineers, Inc. v. Muni. Ct.* (1978) 21 Cal.3d 724, 727.) “[A] corporation, unlike a natural person, cannot represent itself before courts of record in *propria persona*, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” (*CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 (*CLD Constr.*)). However, “[t]he rule requiring representation by an attorney does not deprive a corporation of this capacity to be a party to a lawsuit.” (*Id.* at 1150.) The Court understands this latter holding in *CLD Constr.* to mean that Kimberton may not escape its obligations under the Civil Discovery Act by failing to retain counsel.

2. Requests for Admission

Where “a party to whom requests for admission are directed fails to serve a timely response...[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction...” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (*Id.* at subd. (c).)

Because Kimberton failed to serve a timely response to the Requests for Admissions, either prior to the filing of the motion or before hearing on the motion, Meteor is entitled to an order deeming genuine all documents identified in the requests and further deeming admitted all matters specified in the requests.

It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (*Id.* at subd. (c).)

3. PMQ Deposition

“If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

The Court finds that Kimberton failed to designate a party to appear and failed to appear at the subject deposition without having served a valid objection.

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Kimberton, by failing to oppose the instant motion, failed to establish any facts or present any evidence tending to show that it acted with substantial justification or demonstrate any other circumstances that would make the imposition of sanctions unjust.

4. Monetary Sanctions

The Court finds that both the hourly rate charged by Meteor's counsel, and the amount of time spent in preparing the motion are reasonable. The Court further finds that the hourly rate, while at the upper limit, is consistent with those typically charged in the community for similar work. The Court further finds that Meteor is entitled to recoup its filing fee for the motion and the costs incurred in retaining a court reporter for the noticed deposition.

Based on the foregoing, the request for monetary sanctions is GRANTED.

.....
Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY'S MOTION TO COMPEL
PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION AND
INTERROGATORIES

TENTATIVE RULING: The matter is CONTINUED to September 1, 2026, at 8:30 a.m. in Dept B to allow the parties to address the following items:

- 1) Federal shall submit a supplemental declaration to confirm the parties' agreement to extend the deadline for Federal to move to compel responses to each set of discovery requests at issue. The supplemental declaration shall be served and filed no later than August 25, 2026.
- 2) The parties are ordered to engage in additional meet and confer efforts in light of the discussion below. Federal shall file a supplemental declaration stating facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion was made. The supplemental declaration shall be served and filed no later than August 25, 2026. The parties are further directed to file, not later than August 25, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel, in light of the parties' meet and confer efforts.
- 3) The parties are also encouraged to meet and confer regarding the appointment of a discovery referee pursuant to Code of Civil Procedure, section 638. Upon any agreement, the parties may submit a stipulation and proposed order.

A. PROCEDURAL MATTERS

Defendant Federal Insurance Company ("Federal") moves, pursuant to Code of Civil Procedure sections 2030.300 and 2031.310,³ to compel Plaintiffs' further responses, within 30 days, to Federal's Special Interrogatories (Set One) Nos. 9-12 and 14-16; Form Interrogatories (Set One) Nos. 9.2, 12.3, 12.4, 12.6, and 50.3; Requests for Production (Set One) Nos. 1-7, 9-15,

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

17, 18, 22, 23-25, 27-29, 31-41, 43-47, 49, 50; and Requests for Production (Set Two) No. 47 propounded on Plaintiff Thomas Pollock and the corresponding requests propounded on Plaintiff Eileen Tabios (collectively, “Subject Discovery”).

Federal failed to provide adequate notice of the hearing date. (See §§ 1005, subd. (b) and 1010.6, subd. (a)(3)(B).) However, Plaintiffs waived any objection to the defect by failing to raise such objection and by submitting opposition papers addressing the substance of Federal’s motion. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697, quoting *Tate v. Super. Ct.* (1975) 45 Cal.App.3d 925, 930.)

B. JURISDICTIONAL ISSUE

Unless extended by written agreement of the parties, the deadline for a motion to compel further responses is 45 days (extended if served by mail, overnight delivery, fax or electronically) after service of a verified response. (§§ 2030.300, subd. (c), 2031.310, subd. (c); *id.*, § 1010.6, subd. (a)(4) [extension of two court days for electronic service].) Otherwise, the demanding party waives the right to compel any further response. (*Id.*, § 2031.310, subd. (c); see *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745.)

The verified responses to the Requests for Production (Set One), Special Interrogatories (Set One), and Form Interrogatories (Set One) were served January 26 and 27, 2026. (See Declaration of Brittany Fowler (“Fowler Decl.”), ¶¶ 8-13.) Thus, unless an extension was agreed to, the deadline to move to compel a further response thereon was approximately March 12 and 13, 2026. However, the present motion was filed July 17, 2026.⁴

The Court notes that the Motion challenges, in part, the sufficiency of the Set One verifications. While deficient verifications render responses (other than objection-only responses) tantamount to no response at all (in which case a motion to compel is not subject to the 45-day deadline under sections 2030.290 or 2031.300), the Motion is not brought under sections 2030.290 or 2031.300 to compel a response where none was given. Moreover, certain of the responses which Federal challenges by the Motion are objection-only responses, and therefore, the 45-day deadline still applies even with a deficient verification. Based on the foregoing, the fact that the Motion challenges the Set One verifications does not outright obviate the need to comply with the 45-day deadline.

While the Fowler Decl. attaches meet and confer communications between the parties which tend to support that the parties agreed to extend the 45-day deadline with respect to the Set One discovery requests, there is nothing before the Court expressly confirming that and it is not the Court’s obligation to comb through the record for factual and legal support that a party has failed to identify or provide. Even though this issue was not raised in Opposition, the 45-day deadline is mandatory and “jurisdictional,” i.e., the Court has no authority to grant a late motion. (See *Sexton v. Super. Ct.* (1997) 58 Cal.App.4th 1403, 1410 [“We do not believe the 45-day limitation is ‘jurisdictional’ in the fundamental sense, but is only ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.”].)

⁴ The Fowler Decl. was not filed until July 21, 2026.

Based on the foregoing, Federal is ordered to file and serve, not later than August 25, 2026, a supplemental declaration which confirms the parties agreed to extend the motion to compel deadline to July 17, 2026 as to each discovery request for which further responses are sought. Going forward, this jurisdictional fact should be clearly set out in a declaration accompanying any future discovery motions to which the 45-day deadline applies.

C. MEET AND CONFER DECLARATION

“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion.” (§ 2016.040, subd. (a). Emphasis added.) The addition of “either in person, by telephone, or by videoconference” became effective January 1, 2026. (See 2025 Cal. Legis. Serv. Ch. 200 (A.B. 1521) (WEST).)

Federal’s meet and confer declaration simply states that counsel met and conferred on certain dates in compliance with section 2016.040 and attaches written correspondence between counsel. (Fowler Decl., ¶¶ 2-7, Exhs. 2-5; see also Notice of Motion, 2:14-15.) This fails to comply with section 2016.040.

Moreover, from a review of the briefing, it appears to the Court that counsels’ meet and confer efforts have been perfunctory. “It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

The parties are directed to redouble those efforts in light of the following. Federal shall file a supplemental declaration, no later than August 25, 2026, stating facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion took place.

Federal first contends that Plaintiffs’ responses are deficient because Plaintiffs unilaterally limited their agreement to produce documents in certain ways, without specifying which documents they are withholding. (Mem., 2:9-11, 4:23-6:24, 12:11-13:2.) Plaintiffs contend that their responses reflect a good faith, reasonable, and cooperative attempt to provide substantive responses to overbroad demands, and that the substance of their responses signals that Plaintiffs are construing the requests according to their reasonable and customary scope, rather than the limitless scope as defined by Federal. Plaintiffs further assert that they expressly represented, during the meet and confer process, that they are not withholding any documents Defendant would otherwise be entitled to under the Code. (Opp., 3:3-6.)

Federal fails to describe with sufficient specificity the precise information or materials to which it contends it is entitled by way of these requests, but which Plaintiffs have failed to produce. Furthermore, Plaintiffs had proposed that Federal strike a portion of the definition that made the term “relating to” overbroad, which would then allow Plaintiffs to remove the

challenged qualifiers in response; however, Federal declined that proposal and instead brought the present motion. Federal does not meaningfully respond to its obstinance regarding the definition of “relating to.” These circumstances appear to the Court to be entirely resolvable between the parties without Court intervention.

Federal next contends that, in response to certain Requests for Documents (Mem., 3:24-4:7, 6:26-7:1, 7:23-8:9, 10:8-19, 11:27-12:4), Plaintiffs objected and refused to produce all responsive documents. First, Plaintiffs contend that, for many of the requests, they did not refuse to produce responsive documents and have expressly represented that they are withholding nothing to which Federal is entitled under the Code. Moreover, Plaintiffs’ objection to many of these Requests was based on Federal’s definition of “relating to.” Federal contends that, in meet and confer, Federal agreed to use Plaintiffs’ definition of “relating to,” but that Plaintiffs did not respond to that proposal. (Mem. 4:4-6.) Plaintiffs refute this in Opposition, stating that they cannot be faulted with failing to respond to this proposal, when they had made the same proposal earlier and were met with refusal. As both parties appear to agree on the proposal, it is clear to the Court that this is an area the parties should be able to work out without motion practice.

Plaintiffs further objected on grounds that responsive documents had already been provided, as this underlying dispute between the parties has an extensive history, including prior and concurrent litigation. To the extent Federal seeks additional documents outside of the scope already in Federal’s possession, it appears Plaintiffs are willing to meet and confer regarding that scope. (See Opp., 9:22-10:2.) Finally, Plaintiffs asserted objections to certain requests on the grounds that they do not seek damages related to the subject thereof and that, in any event, Federal already has responsive documents in its possession, yet Federal still seeks responsive documents on an attenuated theory that the documents might show Plaintiffs’ state of mind as to their property in general.

Federal further contends that Plaintiffs’ interrogatory responses are improper because they point to unspecified documents and fail to supply complete, narrative answers. (Mem. 13:3-14:12.) Plaintiffs contend that their exercise of section 2030.230 is proper and that, consistent with its response, Plaintiffs will provide, concurrent with their production of documents which is currently in progress, identification of documents from which responsive information to the interrogatories may be derived. This strikes the Court as an issue capable of informal resolution between the parties.

Finally, Federal contends that Plaintiffs have failed to provide agreed-upon supplemental responses and code-compliant verifications. (Mem., 14:13-15:9.) Plaintiffs acknowledge their agreement to provide amended verifications. This strikes the Court as a matter the parties should be able to work out informally.

Based on the foregoing, the parties are ordered to engage in additional meet and confer efforts. The parties are directed to file, not later than August 25, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel, in light of the parties’ meet and confer efforts.

D. DISCOVERY REFEREE

The Court is becoming concerned regarding the number of the discovery disputes and scope of issues in this matter, as well as counsel's pattern of failing to engage in meaningful meet and confer or to reach informal resolutions thereon. This is the third motion relating to discovery set for hearing in the last 40 days. The parties' consistently reference, through their briefs, separate federal litigation between them related to a previous fire when arguing in support of or in opposition to a party's respective entitlement to certain materials and information. The present motion requires review of a voluminous number of documents. There are 57 discovery requests at issue. The moving and opposing papers include separate statements consisting of a combined 240 pages and declarations consisting of 733 pages. Although resolution of the legal issues underlying the discovery requests are not complex, unsettled, or matters of first impression, limited judicial resources make these discovery inquiries inordinately time-consuming. (*Id.* at 106.) Napa County Superior Court is a small court consisting of seven judges. The civil department consists of two judges, one of whom is recused in this matter. In addition to the present motion, issues raised at the July 21, 2026 hearing on Federal's previous discovery motion, including Plaintiffs' counsel's representations regarding the amount of time that code-compliant supplemental responses might reasonably take, does not give the Court confidence that the present string of discovery disputes is the last that may arise between the parties.

Where the parties do not consent, section 639 permits the Court to appoint a Discovery Referee upon a finding that "the exceptional circumstances of the particular case require the appointment." (Rules of Court, Rule 3.920.) Pursuant to the holding in *Taggares v. Super. Ct.* (1998) 62 Cal.App.4th 94, a trial court must find the majority of the following factors when considering reference in a discovery context: "(1) there are multiple issues to be resolved; (2) there are multiple motions to be heard simultaneously; (3) the present motion is only one in a continuum of many; (4) the number of documents to be reviewed (especially in issues based on assertions of privilege) make the inquiry inordinately time-consuming". (*Id.* at 105.)

As noted above, this motion is one in a continuum of many and there appear to be multiple issues involved. While the Court is not prepared to appoint a discovery referee at this juncture, counsel are urged to consider whether their current approach to discovery is in the best interest of the parties.

Based on the foregoing, the parties are encouraged to meet and confer regarding the appointment of a discovery referee pursuant to section 638. Upon any agreement, the parties may submit a stipulation and proposed order.

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JPMorgan Chase Bank N.A. v. Deborah L Paniagua

25CV001227

**MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT**

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order and Proposed Judgment.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff JPMorgan Chase Bank, N.A. moves, pursuant to Code of Civil Procedure 664.6, for an order to vacate the dismissal and for entry of judgment under terms of the stipulated settlement.

The Court finds good cause for entering judgment based on the Parties' stipulated settlement, filed August 19, 2025, this Court's Order of August 22, 2025, and the Declaration of Smita Suman filed in support of the instant motion (Suman Decl.). (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1183 [entering appealable judgment on trial court order, entered after dismissal, that finally determined the rights of the parties in the action].) No opposition appears in the Court's file.

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Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The matter is CONTINUED to September 09, 2026, at 8:30 a.m. in Dept. B. Moving counsel is directed to provide code-compliant notice of the continued hearing to all parties.

The Court is without jurisdiction to consider the Motion to be Relieved as Counsel. First, the Declaration of Counsel states that the Notice of Motion and moving papers were served by Mail and email. (See *id.* at ¶ 3.) However, the proof of service attached thereto states that service was accomplished only by email. Second, the proof indicates service was made on July 17, 2026, which is insufficient notice of the hearing pursuant to Code of Civil Procedure section 1005, subdivision (b). (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question"].) Applicant is to provide adequate notice of the continued hearing.

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MOTION TO COMPEL ARBITRATION AND STAY ACTION

TENTATIVE RULING: The matter is CONTINUED to September 11, 2026 at 8:30 a.m. in Dept. B.

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In The Matter of Ruben Alejandro Trejo Lopez

26CV001287

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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In The Matter of Lynnae Ildefonso Torres

26CV001313

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.